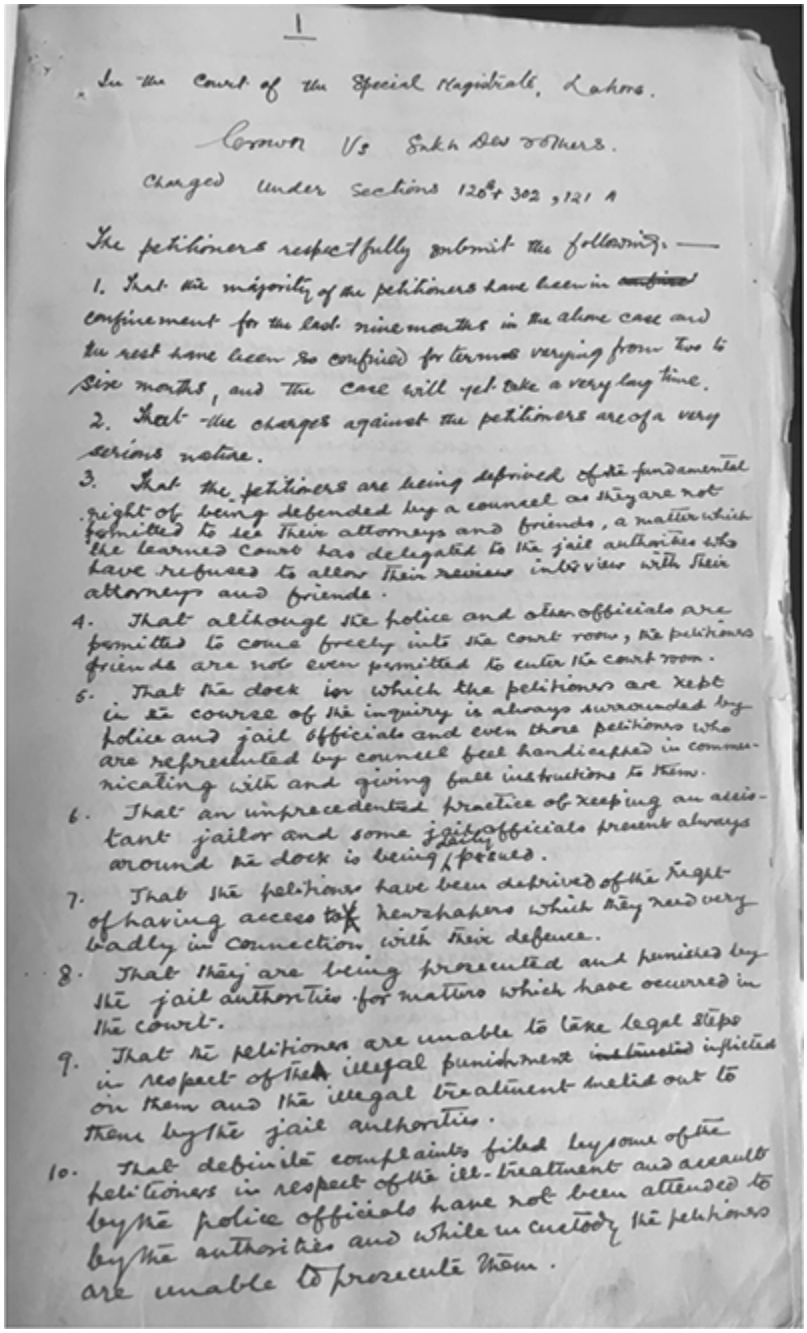


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In the Court of the Special Magistrate, Lahore.

Crown Vs Sukh Dev & others.

Charged under Sections 120B & 302, 121 A

The petitioners respectfully submit the following: —

1. That the majority of the petitioners have been in ~~custody~~ confinement for the last nine months in the above case and the rest have been so confined for terms varying from two to six months, and the case will yet take a very long time.
2. That the charges against the petitioners are of a very serious nature.
3. That the petitioners are being deprived of the fundamental right of being defended by a counsel as they are not permitted to see their attorneys and friends, a matter which the learned Court has delegated to the jail authorities who have refused to allow their reviews interview with their attorneys and friends.
4. That although the police and other officials are permitted to come freely into the court room, the petitioners friends are not even permitted to enter the court room.
5. That the dock in which the petitioners are kept in the course of the inquiry is always surrounded by police and jail officials and even those petitioners who are represented by counsel feel handicapped in communicating with and giving full instructions to them.
6. That an unprecedented practice of keeping an assistant jailor and some ~~jail~~ daily officials present always around the dock is being pursued.
7. That the petitioners have been deprived of the right of having access to ~~K~~ newspapers which they need very badly in connection with their defence.
8. That they are being prosecuted and punished by the jail authorities for matters which have occurred in the court.
9. That the petitioners are unable to take legal steps in respect of the illegal punishment ~~instantly~~ inflicted on them and the illegal treatment meted out to them by the jail authorities.
10. That despite complaints filed by some of the petitioners in respect of the ill-treatment and assault by the police officials have not been attended to by the authorities and while in custody the petitioners are unable to prosecute them.

(5) It is a little-known fact that throughout his trial, both before the magistrate and later before the special tribunal, Bhagat Singh's relatives were determined to visit him in jail despite the heavy restrictions imposed on them by the jail authorities. Here, an attendance record shows how Bhagat Singh's grandfather, Arjan Singh, visited him in jail on 9 December